

HUM 4441: Engineering Ethics
Sample Question

Case Study: Apple v. Andrew Aude (2024)

Andrew Aude joined Apple in 2016 as an iOS software engineer responsible for battery performance optimization. This role gave him access to confidential information across dozens of Apple's most sensitive projects, including unreleased hardware, chip development, and spatial computing efforts (later known as Vision Pro). Upon joining, he signed an Intellectual Property Agreement (IPA) obligating him to maintain confidentiality of all proprietary information.

Over a five-year period (2018 to 2023), Aude systematically leaked confidential information to journalists at *The Wall Street Journal* and *The Information*. Using his Apple-issued work iPhone, he sent over 1,400 encrypted Signal messages to a *WSJ* journalist he codenamed "Homeboy," and over 10,000 text messages to a journalist at *The Information*, traveling across the continent to meet her in person. Leaked information included: a finalized feature list for the unannounced Journal app (read aloud over the phone), Vision Pro development details, regulatory compliance strategies he himself called "top secret," unreleased product hardware characteristics, and internal employee headcounts.

Aude admitted that one motivation was to "kill" products he personally disagreed with by generating negative press coverage. Evidence from his work phone also showed he frequently searched for articles based on his own leaks and saved screenshots of journalist conversations, suggesting personal vanity and enjoyment of media attention also drove his actions.

In November 2023, Apple's Global Security team identified Aude through digital forensics. During a confrontation meeting, Aude denied everything, then excused himself to the bathroom and deleted evidence from his phone. Apple's forensic tools recovered the deleted data. He was terminated three days later.

Apple filed suit in March 2024, alleging violation of the Defense of Trade Secrets Act, the California Uniform Trade Secrets Act, and breach of contract. Apple argued that even after termination, Aude "poses an ongoing threat based on his knowledge of Apple's confidential and proprietary information." Due to his destruction of evidence, Apple stated it "cannot know the universe of what he disclosed to whom and when."

Questions

- (a) [8 marks] Identify how each of the three types of conflict of interest (actual, potential, and apparent) arises in Aude's case. For each type, cite one specific action or relationship from the case and explain why it fits that classification.
- (b) [10 marks] After termination, Aude still carries deep experiential knowledge of Apple's chip architectures, product roadmaps, and compliance strategies, knowledge that cannot be "unlearned." If Aude joins a competing technology company, on whom does the burden of protecting confidentiality fall, and what specific steps should he take to fulfill that burden while exercising his right to career mobility?
- (c) [3 × 4 marks] Analyze Aude's behavior through the following three risk perception factors:
- (i) Aude chose to leak while Apple and its customers had no choice in being exposed. How did the voluntary nature of his actions affect his perception of risk?
 - (ii) Aude treated each leak as a small, isolated act. Was this perception accurate, and what is the cumulative effect of such leaks over five years?
 - (iii) Aude used encrypted messaging and sustained leaking for five years. What did he assume about the probability of being caught, and identify two specific misjudgments he made about Apple's detection capabilities.

Answer Hints:

- (a) Q1: The actual, potential and apparent could be something similar to:
- **Actual:** Conflict of interest with Apple inc. and the signed IPA. Self explanatory, he violated the contract he signed and worked against his employer.
 - **Potential:** Encrypted texts with journalists, could become a potential conflict of interest provided the fact Aude had insider information and journalists are scouring for them. Even if Apple was unable to prove that he exchanged information was sensitive.
 - **Apparent:** Travelling across a continent to meet a journalist from *The Information*. An insider meeting a journalist across a continent is a red flag, regardless of the circumstances of leaked information were present or not.
- (b) Q2: *The answer depends on the clauses of the IPA, how much information is he restricted to share, but then again it's not possible for anyone to restrict what an employee speaks while working with a different employer. Explain this question analysing through both of these angles.*
- (c) Q3:
- (i) Voluntary risk taken, perceived as low.
 - (ii) Small isolated acts perceived as low risk, but the cumulative effect had high risk. The cumulative risk was perceived to be distant, thus Aude misjudged the risk to be low.
 - (iii) In both of the cases below Aude perceived the risk or the Expected Risk Probability of being caught to be lower.
 - Misjudged that work phone is easier to keep track of by the organization
 - Underestimated the capabilities of Digital Forensics.